

INTA Practice Guides Report

Trademark Enforcement Guide

Cyprus

SINGLE JURISDICTION REPORT

CONTRIBUTOR(S)

Anastasios Antoniou, Antoniou McCollum & Co. LLC, Lefkosia, Lefkosia, Cyprus

Ifigenia Iacovou, Antoniou McCollum & Co. LLC,

I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- It is neither mandatory nor common to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting infringement proceedings in this jurisdiction.
- Before initiating an infringement proceeding, a party may take the following actions: serve a demand letter on the other party.
 - The name for such a letter is: Letter of demand (• À¹ Ã Ä ç » ®)
- Such a letter should be sent at the following time: as soon as possible after becoming aware of the infringement.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark; (preferred) an attorney for the licensee of the mark; (preferred)
- Specific rules/customary practices applicable to such letters include: the reasonableness of the demand; allowing sufficient time for response.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark.
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: The letter may not be deemed a sufficient demand in the context of proof in the main proceedings.
- The length of time within which to allow the recipient to respond to the letter that is considered reasonable is: The time frame would depend on the contents of the demand in the letter.
- The following factors are taken into consideration when determining the length of time that is considered reasonable: whether the recipient is required to disclose any information or documents, or take any action in response to the letter.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: may help ascertain that infringement was inadvertent; may provide a basis for a claim of willful infringement; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.
- The potential consequences of sending such a letter include: provides grounds for an

action for declaration of invalidity or non-infringement;the possibility of the recipient's initiating infringement proceedings based on alleged prior rights;the possibility of the recipient's initiating proceedings for unjustifiable threat of infringement;unlawful restraint;destruction of evidence;loss of the element of surprise, giving infringer time and opportunity to prepare a defense.

- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include:the claim may be barred by time limits or statute of limitations;loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is only one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark, which is: district courts.
- The following parties have standing/authority to institute a trademark infringement proceeding:the registered proprietor of a mark;an exclusive licensee (the owner/registered proprietor must join the proceeding);an exclusive licensee (the owner/registered proprietor need not join the proceeding);a non-exclusive licensee (the owner/registered proprietor must join the proceeding).
- If there is more than one registered proprietor/owner, they need not all join in instituting the proceedings.
- Trademark infringement proceedings are decided by a judge with no jury.
- The time limit for initiating trademark infringement proceedings is: There is no time frame within which infringement proceedings can be initiated provided the trademark concerned is in good standing as to its registration and the owner has not relinquished his rights (for example, as a result of not using the mark for five years).
- Once infringement proceedings are initiated, the stages of the proceedings include:filing of claim (including presentation of facts and legal arguments);filing of reply/defense to claim;filing of counterclaim;filing of evidence;discovery;preliminary motions (to dismiss, for preliminary injunction or temporary restraining order);filing of briefs/written arguments;oral hearing;oral testimony/examination of witness;trial;judgment/decision;damages (or other financial relief) assessment.
- The average amount of time from the instituting of infringement proceedings through trial/final hearing is:between one and two years.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is:up to three months.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws:common law of unfair competition;common law of passing off;common law of tort.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark:the owner of the unregistered right.
- If there is more than one owner of an unregistered mark, they must all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.

- In order to apply for an ex parte injunction, it is necessary to institute infringement proceedings at the same time.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts); search and discovery orders for the disclosure of or access to information.
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: Should the element of urgency be lost, an ex parte injunction would be unlikely to be issued.
- The purpose of an ex parte injunction is:to restrain further infringing activities until trial or a further hearing;to prevent the consequences of an infringement or violation;to obtain or preserve evidence;to ensure the effectiveness of the eventual remedy;to preserve the status quo;to prevent irreparable injury.
- The strategic benefits of obtaining an ex parte injunction include:it may put an end to the infringement and litigation quickly;it may save costs;putting the defendant at a strategic disadvantage at the beginning of the case;obtaining or preserving evidence.
- The risks of seeking an ex parte injunction (if it is not granted) are:increased costs of the proceedings;early disclosure of plaintiff's case;potential for a damages claim under a bond or cross-undertaking (i.e., an undertaking in damages);
- An ex parte injunction remains in place: either until a decision is made on the main proceedings or until further order by the court. It may also be issued for a prescribed time frame.
- The defendant is notified of the grant of an ex parte injunction:by the plaintiff.
- The plaintiff must notify the defendant within the following time frame: The court will prescribe the time frame for service of the injunction.
- The procedure for applying for an ex parte injunction includes the following:motion;supporting affidavits or declarations;supporting documentary evidence;posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on:the potential damage/losses to the defendant caused by an improvidently entered injunction;the defendant's costs in defending the injunction application;
- The factors considered in the granting of an ex parte injunction are:inadequacy of damages as a remedy;balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant or from the denial of the injunction;whether the status quo should be preserved;likelihood of success on the merits;urgency;timeliness with which plaintiff sought the injunction.
- The following forms of evidence are admissible in support of an ex parte injunction application:written witness statements;documents;affidavitsamples of infringing product(s).
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: forfeit its bond, which is paid to the defendant; applicant will be ordered to pay costs to the respondent.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: less than USD \$10,000.
- The costs of an ex parte injunction are recoverable as follows: upon the injunction becoming absolute (i.e., when the court issues a final judgment on the injunction in favor of the applicant).
- On average, an ex parte injunction is issued within the following time period

(counting from filing of the application to issuance of the injunction):less than two days.

- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”).
- The following party or parties will be present at the inspection:the party who obtained the order;the party/parties' legal representative(s);other: any independent party the injunction may have appointed to carry out the inspection.
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The grant of an ex parte injunction can be appealed.
- Appeal of a decision for grant of an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision for denial of an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- In order to apply for an interim inter partes injunction, it is necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts); search or discovery orders.
- There is no specified deadline for seeking an interim inter partes injunction.
- A delay in applying for an interim inter partes injunction cannot prevent the applicant from obtaining the desired relief.
- The purpose of an interim inter partes injunction is:to restrain further infringing activities until trial or a further hearing;to prevent the consequences of an infringement or violation;to obtain or preserve evidence;to ensure the effectiveness of the eventual remedy;to preserve the status quo;to prevent irreparable injury.
- The strategic benefits of obtaining an interim inter partes injunction include:it may put an end to the infringement and litigation quickly;it may save costs;putting the defendant at a strategic disadvantage at the beginning of the case;obtaining or preserving evidence;ensuring the availability of the requested remedy;ensuring the availability of compensation for damages;reducing potential damage caused by infringement.
- The risks of seeking an interim inter partes injunction (if it is not granted) are:increased costs of the proceedings;early disclosure of plaintiff's case;potential for a damages claim under the bond or cross-undertaking;
- An interim inter partes injunction remains in place: until the decision on the main proceedings or until further order or for a time period prescribed by the court.
- The procedure for applying for an interim inter partes injunction includes the following:motion, with notice to all parties;supporting memorandum/points and authorities of law;supporting affidavits or declarations;supporting documentary evidence;responsive affidavits or declarations;discovery;hearing;order;posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on:the potential damage/losses to the defendant caused by an improvidently entered injunction;the defendant's costs in defending the injunction application;
- The factors considered in the granting of an interim inter partes injunction are:inadequacy of damages as a remedy;balance of convenience or hardships; i.e.,

consideration of the hardship to each side arising from the grant or from the denial of the injunction; whether the status quo should be preserved; likelihood of success on the merits; defendant's ability to pay awarded damages;

- The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; documents; affidavits; samples of infringing product(s).
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to forfeit its bond, which is paid to the defendant; legal costs as these may be awarded by the court.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: between U.S. \$10,000 and \$50,000.
- The costs of an interim inter partes injunction are recoverable as follows: Legal costs may be paid by respondent if the court so orders.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from filing of the application to issuance of the injunction): between 30 and 90 days.
- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order").
- The following party or parties will be present at the inspection: the party who obtained the order; the party against whom the order is granted; the party/parties' legal representative(s);
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction can be consolidated with the trial or final determination on the proceeding.
- The grant of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the grant of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision for grant of an interim inter partes injunction cannot be expedited.
- The denial of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision denying an interim inter partes injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction is the same as the standard for obtaining an ex parte injunction.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: summary judgment (judgment as a matter of law when facts are undisputed); determination of preliminary issue by trial or hearing; striking out or dismissing a party's case on the pleadings;

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances: there is no arguable case or defense (i.e., there is no reasonable prospect of the party succeeding in the proceedings);
- Summary judgment can be requested by the following parties: plaintiff.
- The applicant for summary judgment must: make an application to the court; file supporting documents or other evidence.
- A ruling on a motion for summary judgment may be appealed: if the motion is granted, if the ruling resolves all claims pending in the case (i.e., is a final judgment in the case).
- A summary judgment may be appealed on the following grounds: the court improperly resolved disputes about material facts; the court made an error of law; new evidence is found after the issuance of summary judgment.

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings can be expedited through an early trial or hearing on a preliminary issue under the following circumstances: resolving the preliminary legal point(s) may determine the entire proceedings.
- Trial or hearing of a preliminary issue can be requested by the following parties: plaintiff; defendant.
- The applicant for trial or hearing of a preliminary issue must: make an application to the court; file supporting witness affidavits or declarations of fact.
- For the court to grant a trial or hearing of a preliminary issue, the following conditions must be met: the decision of such point of law substantially disposes of the whole action.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documents/samples/photos of allegedly infringing items; expert evidence; oral testimony; survey evidence.
- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documents; oral testimony; survey evidence.
- A claimant must present or give notice of any evidence upon which it will rely at a specified time after commencement of the proceedings, i.e.: at discovery.
- A defendant must present or give notice of any evidence on which it will rely at a specified time after commencement of the proceedings, i.e.,: at discovery.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the tribunal; at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness

statement (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses; documents; surveys; physical objects; expert testimony.

- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion.

- The use of survey evidence is subject to the following requirements: the laws of evidence.

- The length of an average trial or final hearing for a civil action for trademark infringement is: between 3 to 15 working days, depending on the volume of evidence.

- The nature of the proceedings is: adversarial, i.e., the proceedings are driven by the parties and their representatives (e.g., the litigants control and present evidence) and the decision maker plays a relatively passive role.

- A trial or final hearing includes the following: plaintiff's case; witnesses by plaintiff; defendant's case through examination of defendant; plaintiff's rebuttal case; cross-examination of witnesses; argument by counsel for each party.

- Witnesses are examined by: the lawyers.

- As part of trial preparation, the parties do the following: submit marked exhibits; provide stipulations of fact; identify trial witnesses.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: one to three months.

- The decision may be appealed within the following time frame: Appeals against an interim or final order must be made within 14 days as of the date on which the order was rendered binding. Final judgments in main proceedings can be appealed within six weeks from the date on which the judgment became binding.

- Appealing a decision is not of right; permission is required.

- There is only one court to which an initial appeal can be made, which is: Appellate Court.

- The appeal court reviews: legal issues.

- Further appeal is not possible.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: as soon as the judgment becomes binding.

- A judgment may be enforced by way of the following proceeding(s): For enforcement purposes there must be a court judgment, delivery of the judgment that creates an obligation, and refusal or failure of the defendant to pay the sum awarded under the judgment. Enforcement measures with respect to any amounts awarded under the judgment may include warrant of seizure and sale of movable property; order to repay a judgment debt in monthly instalments; order to surrender possession of immovable property; bankruptcy proceedings (for individuals); winding up petition (for companies).

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees (Legal costs are calculated on the basis of a prescribed scale of costs and may not rise to the full amounts paid to counsel.);

expert fees; process service costs.

- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows:less than USD \$20,000.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: percentages vary from case to case and depending on the fees agreed under the relevant engagement agreement (contractual arrangement for retaining counsel's services, which covers fees).
- Attorney fees are assessed using the following method(s):proof of attorney time expended, paid at rates specified by the court;a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff is not required to provide security for any costs that may eventually be awarded against it.
- A defendant is not required to provide security for costs after proceedings are initiated.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement:accounting of defendant's profits and actual damages.
- Actual damages are assessed using the following methods:lost profits of plaintiff;damages to plaintiff;constructive license fee/reasonable royalty.
- Where both damages and an accounting of profits are available and a party proves both, the party will receive both.
- Determination of the type and amount of remedy is not part of the trial on liability and occurs only after a final judgment on liability has been made.
- The following non-monetary remedies are available for trademark infringement:injunctions;delivery up of infringing labels, packaging or products;destruction;disposal;removal or obliteration;recall of infringing products;corrective advertising.

PERMISSIONS STATEMENT

Users are permitted to provide copies of individual jurisdiction profiles or other searches to clients in response to their queries for such information. A copyright notice will automatically print at the end of each search when you use your browser's print function. Please note that this permission applies only to duplication or transmission of portions of the content of this Practice Guide and does not extend to duplication or transmission of the entire content by any means.

DISCLAIMER

All information provided by the International Trademark Association in this Practice Guide is provided as a source of general information on trademark and other intellectual property issues. In legal matters, no publication whether in written or electronic form can take the place of professional advice given with full knowledge of the specific circumstances of each case and proficiency in the laws of the relevant jurisdiction. While efforts have been made to ensure the accuracy of the information in this Practice Guide, it should not be treated as the basis for formulating business decisions without professional advice.

Copyright © 2016 – 2026 International Trademark Association